

CHAPTER 15.70: CONDITIONAL USE PERMITS

Section

- 15.70.010 Intent and purpose
- 15.70.020 Application and fees
- 15.70.030 Public notification of Planning Commission hearing
- 15.70.040 Planning Commission decision and required findings
- 15.70.050 Time limits
- 15.70.060 Appeals
- 15.70.070 Reserved
- 15.70.080 Reserved
- 15.70.090 Revocation

§ 15.70.010 INTENT AND PURPOSE.

(A) The Planning Commission may grant a conditional use permit upon application for such matters as required to be reviewed by this title.

(B) No conditional use permit shall be granted by the Planning Commission unless findings for said conditional use permit can be made pursuant to § 15.70.040 (D).

(C) The purpose of a conditional use permit shall be:

(1) To assure that the degree of compatibility shall be maintained with respect to the particular use on the particular site and in consideration of other existing and potential uses within the general area in which such use is proposed to be located; and

(2) Recognize and compensate for variations and degree of technological advancements in processes and equipment as related to the factors of noise, smoke, dust, fumes, vibration, odors and hazards.

(Ord. 2982, passed - -2001; Ord. 3026, passed - -2003; Ord. 3232, passed - -2016)

§ 15.70.020 APPLICATION AND FEES.

(A) An application for a conditional use permit shall be filed only by, or by written authorization from, the legal owner of real property(ies) of the parcel(s) subject to the conditional use permit request.

(B) An application for a conditional use permit shall be made upon a form to be provided by the Community and Economic Development Department and shall be accompanied by the following:

- (1) A completed preliminary environmental description form;
- (2) Maps, drawings, plans, tabulations and other documents completely describing the request; and
- (3) The required fee, as prescribed by resolution of the City Council.

(Ord. 2982, passed - -2001; Ord. 3131, passed - -2009; Ord. 3232, passed - -2016)

§ 15.70.030 PUBLIC NOTIFICATION OF PLANNING COMMISSION HEARING.

Public hearing notice shall be provided in accordance with §15.76.040 .

(Ord. 2982, passed - -2001; Ord. 3131, passed - -2009; Ord. 3232, passed - -2016)

§ 15.70.040 PLANNING COMMISSION DECISION AND REQUIRED FINDINGS.

(A) The action by the Planning Commission upon a conditional use permit shall be by a majority vote of the quorum present, except that a tie vote shall constitute a denial of the conditional use permit. Upon a majority vote therefor, the Commission may, before the adjournment of any meeting, set aside any action taken at such meeting.

(B) The order of the Planning Commission in granting or denying a conditional use permit shall become final and effective ten days after the rendering of its resolution unless within such ten-day period an appeal in writing is filed with the Community and Economic Development Department in accordance with § 15.70.060 of this chapter.

(C) In granting a conditional use permit, the Planning Commission may impose such conditions as it deems necessary to protect the public health, safety and general welfare, and to prevent material detriment to the property of other persons located in the vicinity of the site proposed for the requested use. Conditions imposed may involve any pertinent factors affecting the establishment, operation or maintenance of the requested use, including, but not limited to:

- (1) Special yards, open spaces and buffer areas;
- (2) Fences and walls;
- (3) Parking facilities, including vehicular ingress and egress and the surfacing of parking areas and driveways to specified standards;
- (4) Street dedications and improvements, including sidewalks, curbs and gutters;
- (5) Landscaping and maintenance of grounds;
- (6) Regulation of nuisance factors such as noise, vibrations, smoke, dust, dirt and odors;
- (7) Regulation of operating hours for activities affecting normal neighborhood schedules and functions;
- (8) Regulation of signs and outdoor advertising;
- (9) Provision for a bond or other surety that the proposed use will be removed on or before a specified date; and
- (10) Such other conditions as will make possible the development of the proposed use in an orderly and efficient manner and in general accord with all elements of the General Plan and the intent and purpose of the ordinance codified herein.

(D) In order to grant the conditional use permit, the Planning Commission shall first make the following findings in addition to any findings referenced for the specific conditional use permit requested in other sections of this code:

- (1) The proposed use is conditionally permitted in the zone and complies with all applicable zoning standards;
- (2) The proposed use is consistent with the goals and policies of the General Plan of the city or any specific plan applicable to the area of the proposed use;
- (3) The proposed use as conditioned will not, under the circumstances of the particular case, be detrimental to the health, safety or general welfare of persons residing or working in the vicinity; and
- (4) The project or use demonstrates compliance with the design criteria specified in §15.47.060 .

(E) Should any application for a conditional use permit be accompanied by a subdivision application for a vesting tentative map pursuant to the provisions of Title 16 of this code, the two applications shall be processed and approved concurrently, with the approval for the conditional use permit running with the life of the vesting tentative map. At the time of expiration of the vesting tentative map, all proceedings shall terminate and a new application for subdivision and conditional use permit will be required.

(F) The Community and Economic Development Department shall keep a permanent record of all decisions of the Planning Commission, as well as the ultimate disposition of those applications that are appealed. The record shall be available for public review.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.70.050 TIME LIMITS.

(A) *Order final.* The order of the Planning Commission in granting or denying a conditional use permit shall become final and effective ten working days after the rendering of its resolution unless within such ten-day period an appeal in writing is filed with the Community and Economic Development Department in accordance with § 15.70.060 of this chapter.

(B) *Utilization and extension of conditional use permits.*

(1) A conditional use permit shall not be deemed valid until all of the conditions as approved by the decision body have been complied with and released by the Director of Community and Economic Development. A conditional use permit approved in accordance with the procedures and considerations as provided in this chapter, shall automatically become void after 24 months from the effective date of such approval when the owner fails to institute an action to erect, build, alter, move or maintain the use of the property as specified in the terms and conditions of the conditional use permit; however, at the initial hearing the decision body may provide, by appropriate condition of approval, for extensions of time beyond the two-year period.

(2) A conditional use permit shall automatically become void after 24 consecutive months of inactivity from the effective date of such approval.

(3) Acceptable action shall be considered to be actual construction, alteration, repairs and use of structures and land. Preparation of plans, financial negotiations, estate settlements or change of property owners are not considered sufficient evidence of an action.

(4) Requests for extensions shall be pursuant to §15.76.120 .

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)

§ 15.70.060 APPEALS.

(A) Within ten working days of the Planning Commission's final decision, the applicant or any aggrieved party may file an appeal of that decision by filing with the Community and Economic Development Department a letter of appeal stating the reasons therefor and by submitting an appeal fee as set forth by resolution of the City Council. If the tenth working day falls on a weekend or holiday, an appeal may be filed on the next working day.

(B) Appeal of Planning Commission actions shall be heard by the City Council in a public hearing as identified in division (D) below.

(C) The filing of such appeal within such time limit shall stay the effective date of the order of the Planning Commission until such time as the City Council has acted on the appeal as hereafter set forth in this title.

(D) Upon receipt of a written appeal filed with the Community and Economic Development Department by the applicant or opponent, as provided in this chapter, the Secretary of the Planning Commission shall advise the City Clerk and shall transmit all pertinent data of the case for review by the City Council.

(1) Within not to exceed 60 days following the receipt of the written appeal the City Council shall conduct a duly advertised public hearing, public notice of which shall be given as provided in Chapter 15.76 of this title.

(2) The City Council shall announce its findings and decision by resolution not more than 20 days following the hearing, and said resolution shall recite, among other things, the facts and reasons which, in the opinion of the City Council make the granting or denial of the conditional use permit necessary to carry out the general purpose of this title, and shall order that the conditional use permit be granted, denied or modified subject to such conditions and limitations as it may impose.

(3) Not later than ten days following the adoption of a resolution ordering that a conditional use permit be granted or denied, a copy of said resolution shall be mailed to the applicant or opponent, or to both if they are different parties.

(4) The action by the City Council upon conditional use permits shall be by a majority vote of the entire City Council, except that a tie vote shall constitute a denial of the conditional use permit. Upon a majority vote therefor, the City Council may, before the adjournment of any meeting, set aside any action taken at such meeting. Unless so set aside, a written resolution granting or denying a conditional use permit shall be final upon the adjournment of the meeting at which such resolution is adopted.

(Ord. 2982, passed - -2001; Ord. 3026, passed - -2003; Ord. 3131, passed - -2009; Ord. 3232, passed - -2016)

§ 15.70.070 RESERVED.

Repealed by Ord. 3131.

§ 15.70.080 RESERVED.

Repealed by Ord. 3131.

§ 15.70.090 REVOCATION.

(A) Upon violation of any provision of this chapter, or upon failure to comply with the conditions of approval, or if the use has become a nuisance, or in the event that a conditionally-permitted use is not used or is found to be voluntarily abandoned for a six-month period, the Community and Economic Development Department shall serve the property owner with a notice of intent to revoke the conditional use permit.

(B) Such notice shall contain the following information:

- (1) A description of the subject property, including street address, assessor's parcel number(s) or legal description;
- (2) The names of the owner and names of occupants, if other than the owner;
- (3) The conditional use permit file number and date of issuance;
- (4) A description of the use that the conditional use permit authorizes;
- (5) A statement as to the conditions of approval that are not being complied with and the manner of noncompliance;

(6) A statement that the Planning Commission will hold a public hearing to determine if there is a failure to comply with one or more conditions of approval and that the Planning Commission may either revoke the conditional use permit or take such other actions as deemed appropriate to ensure compliance with the conditions of approval; and

(7) A statement that the owner and/or occupant may appear in person and or be represented by legal counsel, may present oral and written evidence, and may call witnesses, and may ask questions of witnesses called on behalf of the city.

(C) The Planning Commission shall call a public hearing to determine if the conditions of the conditional use permit have been violated, and must make the following findings:

(1) The conditional use permit contains certain conditions that are not being complied with on a certain date or within a period of time; and

(2) The failure to comply with the conditions was done knowingly and intentionally or with reckless disregard of the requirements for compliance or, if not knowingly or intentionally or with reckless disregard, the failure to comply was not corrected by the date of the hearing.

(Ord. 2982, passed - -2001; Ord. 3232, passed - -2016)